

9	30-2024-01382082 Jiang vs. Reynolds	The motion by plaintiff Qi Jiang to set aside the dismissal entered on 10/2/24 is GRANTED. CCP §473(b) states in pertinent part as follows, “(b) The court may, upon any terms as may be just, relieve a party or his or her legal representative from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect. ... Notwithstanding any other requirements of this section, the court shall, whenever an application for relief is made no more than six months after entry of judgment, is in proper form, and is accompanied by an attorney's sworn affidavit attesting to his or her mistake, inadvertence, surprise, or neglect, vacate any (1) resulting default entered by the clerk against his or her client, and which will result in entry of a default judgment, or (2) resulting default judgment or dismissal entered against his or her client, unless the court finds that the default or dismissal was not in fact caused by the attorney's mistake, inadvertence, surprise, or neglect.” Here, the plaintiff’s complaint was dismissed when plaintiff failed to appear for a hearing on an OSC re Dismissal for failure to serve the defendants on 10/2/24. Counsel filed the instant motion on 11/12/24 and it is supported by a declaration of counsel attesting to his mistake which led to his failure to appear at the 10/2/24 hearing. As plaintiff has met the requirements under CCP §473(b), the motion is granted. The dismissal is therefore set aside and the case restored to the active list. Further, the court sets a Case Management Conference for 5/21/25 at 09:00 AM. If service of process is not completed by this date, the court may set a renewed order to show cause regarding dismissal for failure to proceed. Plaintiff is ordered to give notice of this ruling.
10	30-2024-01390588 Hart vs. NSMG Shared Services LLC	Off Calendar